

24PSCV04402 24PSCV04402

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Case Number: 24PSCV04402 Hearing Date: June 25, 2026 Dept: G

Defendant

General Motors LLC's Demurrer to Plaintiff Bernice Castaneda's Third Amended Complaint

Respondent:

NO OPPOSITION

Defendant

General Motors LLC's Motion to Strike Portions of Plaintiff Bernice Castaneda's Third Amended Complaint

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendant

General Motors LLC's Demurrer to Plaintiff Bernice Castaneda's Third Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant

General Motors LLC's Motion to Strike Portions of Plaintiff Bernice Castaneda's Third Amended Complaint is GRANTED.

Defendant

General Motors LLC is ordered to file an ANSWER in ten (10) days.

BACKGROUND

This

is a Song-Beverly action arising from the purchase of an allegedly defective motor vehicle. On January 18, 2023, plaintiff Bernice Castaneda (Castaneda) purchased an SUV manufactured by defendant General Motors LLC (GM).

On

December 23, 2024, Castaneda filed the Complaint. On April 7, 2026, Castaneda filed the operative Third Amended Complaint, alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement by concealment.

On May

4, 2026, GM filed this demurrer with motion to strike, which are unopposed.

This

case is set for a case management conference (further) and a hearing on the demurrer and motion to strike on June 25, 2026.

DEMURRER

GM

demurs to the fifth cause of action for fraudulent inducement by concealment. For the following reasons, the court SUSTAINS the demurrer WITHOUT LEAVE TO AMEND.

Legal

Standard

A

party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.”

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) The court should also draw reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th 699, 727.) The court should liberally construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d 842, 845.) To sustain a demurrer, defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994; SKF Farms v. Super. Ct. (1984) 153 Cal.App.3d 902, 905, stating, "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed."; Hahn, supra, at 747, stating, "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.")

Discussion

The court notes that GM's demurrer to the Third Amended Complaint raises the same objections as GM's demurrer to the First Amended Complaint and GM's demurrer to the Second Amended Complaint. (Compare Dem. to 1AC with Dem. to 3AC; compare Dem to 2AC with Dem. to 3AC.) In the interest of judicial efficiency, the court only briefly discusses the issues addressed in its previous ruling.

The court previously sustained GM's demurrer with leave to amend on the ground that Castaneda failed to allege the elements of fraud with the requisite specificity. (7/24/2025 Order Re: Court's Final Ruling, p. 3; see also 3/18/2026 Order Re: Court's Final Ruling, p. 2, referencing the court's 7/24/2025 ruling.) Additionally, the court cautioned Castaneda that "[a] complaint or cross-complaint shall not be amended more than three times, absent an offer to the trial court as to such additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action." (3/18/2026 Order Re: Court's Final Ruling, p. 2, quoting Code Civ. Proc., § 430.41, subd. (e)(1).)

Despite

this caution, Castaneda failed to amend her pleading to add allegations for the elements of fraud that would cure the previously cited defects with the fifth cause of action. (See *Jenkins v. JP Morgan Chase Bank, Nat. Assn.* (2013) 216 Cal.App.4th 497, 535, suggesting that the court deny leave to amend based on futility where the facts are not in dispute and no liability exists under substantive law.)

Therefore,

the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND on the grounds that Castaneda failed to allege the elements of fraud with the requisite specificity. Since the court sustains the demurrer without leave to amend on other grounds, the court HOLDS IN ABEYANCE the demurrer based on the duty to disclose.

MOTION
TO STRIKE

GM

moves to strike the request for punitive damages. For the following reasons, the court GRANTS the motion.

Legal
Standard

The

court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd.

(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436, subds.

(a)–(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437, subds.

(a)–(b).)

Discussion

GM

argues that Castaneda may not recover punitive damages. The court agrees.

Claims

for damages that may not be imposed may properly be stricken. (Stafford v. Shultz (1954) 42 Cal.2d 767, 782; Grieves v. Super. Ct. (1984) 157 Cal.App.3d 159.) A plaintiff may recover punitive damages if they establish by clear and convincing evidence that a defendant is guilty of oppression, fraud, or malice. (Civ.

Code, § 3294, subd. (a).) “In addition

to the requirement that the operative complaint set forth the elements as stated in [S]ection 3294, it must include specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. . . .

Punitive damages may not be pleaded generally.” (Today’s IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.)

All

of Castaneda’s four remaining causes of action are based on the Song-Beverly Act, which limits recovery of damages, and under limited circumstances, a civil penalty not to exceed two times a plaintiff’s actual damages. (Civ. Code, §§ 1793.2, subd. (d); 1794; see 3AC, ¶¶ 37–54.) Furthermore, there are no specific factual allegations that GM’s conduct was oppressive, fraudulent, or malicious; allegations of fraud are pleaded only generally. (See Today’s IV, Inc., supra, 83 Cal.App.5th at 1193, requiring specific factual allegations to support punitive damages; see, e.g., 3AC, ¶¶ 56, 63, 65, 67, 81, pleading concealment in general terms.)

Therefore,

the court GRANTS the motion to strike punitive damages from the Third Amended Complaint.

CONCLUSION

For

these reasons, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND, and the motion to strike is GRANTED.

Defendant

General Motors LLC is ordered to file an ANSWER in ten (10) days.